

Item No. 6.	Classification: Open	Date: 6 January 2026	Meeting Name: Cabinet (Livesey Trust) Committee
Report title:		The Livesey Trust, Annual Report 2024/25	
Ward(s) or groups affected:		Old Kent Road	
From:		Head of Culture	

RECOMMENDATION

1. That the Cabinet (Livesey Trust) Committee notes The Livesey Trust, Annual Report.

BACKGROUND INFORMATION

2. The Livesey building was bequeathed by George Livesey a local benefactor to the Commissioners for Public Libraries and Museums for the Parish of Camberwell in 1890 as a free public library for the beneficiaries of the trust. The council became the legal owner and trustee of the building by way of statutory devolution. Over time the original objects of the trust have become defunct and the council therefore worked with the Charity Commission to expand the objects of the trust to include wider educational benefit for people in the local area.



Interior of the building circa 1900 when it was Camberwell Library

3. On 12 April 2013 the Charity Commission approved the scheme for the Livesey Trust (No. 4038336). Under paragraph 4 of the scheme the trustee of the charity is the Council of the London Borough of Southwark ('the

Council'). A copy of the scheme is attached to this report and marked Appendix 1.

4. The administration of the trust is an executive function. This is based on the fact that the relevant regulations, the Local Authorities (Functions and Responsibilities) (England) Regulations 2000 provide that any function of the council is to be the responsibility of the executive (cabinet) unless specified otherwise by those regulations. There is nothing in the 2000 Regulations which states that the administration of a charity is not to be a function of the cabinet.
5. The only assets of the Trust are the land and building at 682 Old Kent Road (formerly known as the Livesey Museum for Children).
6. The building dates from 1890 was originally a public library and a Children's Museum. The building is used by Treasure House a Community Interest Company which occupies it under lease on a peppercorn rent basis.
7. The tenant is responsible for the internal and external repairs and the Council as Trustee of the Livesey Trust, will insure the property and charge the tenant an appropriate premium.

KEY ISSUES FOR CONSIDERATION

8. Treasure House (London) CIC is a specialist education provider who works with young people with anxiety and other emotional barriers, autism, dyslexia and school phobia.
9. The key aims of Treasure House are to re-engage students in the learning process in a safe and comfortable environment and provide access to high quality tuition across a broad curriculum. Their approach provides students with the skills and qualifications that are required to allow them to move into the world of work or to progress into further education and ultimately higher education. They have now increased their maximum pupil capacity from 15 to 18 pupils enrolled at any one time.
10. Further information regarding the company status of Treasure House can be found at the [companies house website](#).
11. Their detailed Trust Committee annual report and their own annual report can be found in Appendix 2 and 3. In summary during the period Treasure House:
 - Continued to maintain and improve the facilities through investment of £27,767 (up from £14,696 in the previous year) on the maintenance of, and improvements to, the premises.
 - Security upgrades were made to the back and front access points, supported by a £5,000 grant from Southwark Council, enabling safer access and a green route for staff and students to avoid pollution

- Boosted ICT offer through increased internet access capacity and speeds Replaced both boiler pumps on the system installed by Southwark Council prior to our occupancy.
- Installed draught excluder system for most of the windows to aid draught and heat loss prevention.
- Major drain service, flushing the drains of debris which had accumulated over the years.
- Replaced all fire extinguishers which will keep the building compliant for the next ten years.
- Improved access to the curriculum through purchase of a modular, removable stage along with new music amplification and mixing equipment.
- Acquired a number of power tools and some height adjustable desks to support the DT curriculum.

Academic achievements:

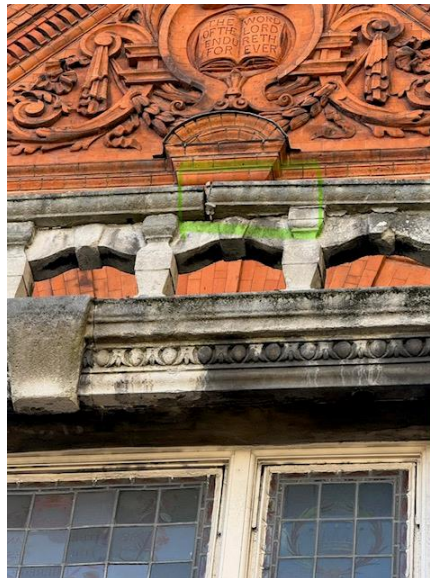
- Eighteen young people aged 14 to 19, all with Special Educational Needs and Disabilities—many with multiple diagnoses—received full-time education and support, with ten female and eight male students.
- One student achieved grade 9 at English Literature and History
- Two students achieved Gold Arts Award (Level 3)
- Four students successfully transitioned to FE provisions after leaving the school.
- Five students left during the period, either because they aged out or at their natural progression point.
- Four out of five went on to further education. The other took part in work experience and is now looking for employment.

Building Inspection and Condition

12. The building was inspected by officers in the property service on Monday 17 November 2025; this involved a walk-through of all internal areas and the front and rear external areas.
13. The lease is held on an effective FRI (Full Repairing) basis subject to the limitation of a schedule of condition and with the exclusion of a number of heritage artefacts located in the rear garden.
14. The premises are well maintained and compliant, and continue to be subject to a programme of planned maintenance and compliance certification. Some external repairs have also been carried out.
15. The external inspection revealed a number of areas of concern principally with masonry defects. On the front elevation there are areas of stonework showing severe weathering and movement; the delamination will cause pieces of stonework to fall to the ground, and there appear to be some larger elements being moved out of alignment. There are several brick walls in the rear garden with brickwork showing signs of weather-related deterioration which has led to some delamination failure in places, likely

due to freeze-thaw action. There are similar areas of concern on the rear of the main building and evidence of failure and spalling in places. There are generally large areas of pointing failure as well. All of this can only get worse.

16. Some photos below of the inspection indicating examples of masonry decay and failure (areas of particular concern highlighted):
17. Officers are of the view that an external condition survey is undertaken by heritage building specialists. This can include recommendations for repairs and preservation to align with the status of the building and conservation obligations to maintain it.





18. The tenant has erected two small cabins in the rear garden for school activities. They are free-standing, located on hard standing, and do not require planning consent. They don't amount to a physical alteration to the building and can easily be removed and remain the responsibility of the tenant, therefore officers are of the view that no further formalities are required at this time. The tenant should keep the council informed as to their use.
19. The tenant is planning to open the yard in a managed way to the public for coffees and events and have been advised by officers to make necessary enquiries as to any licenses or permits that they might need to obtain to enable them to engage in such activities.



20. The tenant has requested the landlord enter into discussions about extending the lease term to improve their position for applying for capital grants (expiry Dec. 2029)
21. Officers asked the tenant to submit a more formal application for a renewal, to include proposed outline terms. It would be prudent for the tenant to be asked to provide the landlord with an updated business plan in support of the application.

Heritage Artefacts Inspection and Condition

22. There are a number of heritage artefacts belonging to the council's collections contained within the rear garden grounds of the site. Most were donations made to the council via the Cuming museum during the 20th century. The objects were inspected in November 2025 and their condition described below has not substantially changed and no reports of any worsening state have been received.
23. **Statue of George Livesey:** The Grade 2 listed statue of Sir George Livesey in the rear garden is in satisfactory condition after inspection and

recent clearing of vegetation, with further plant removal advised for stability and access.

24.



25. **Victorian post box** This Victorian post box was originally sited in Lewisham and added to the Livesey premises in the 1970s or 1980s. It is in poor condition and Treasure House staff have commenced the process to prepare the surfaces for repainting and contacted Royal Mail to ensure the right paint quality and colour shade is used. Rust and flaky paint have been removed. Some more work is needed to finish the post box surfacing and then this will be painted.

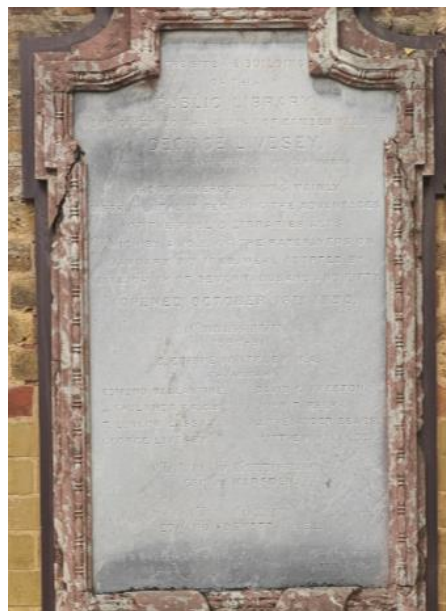


26. **Newington tollgate:** Original iron toll gate which would have been sited across the Newington Causeway. Toll gates formed a barrier across certain routes (called turnpikes) and people, goods and carriages could only pass through and use the road if they paid a fee, or 'toll'. As with the Victorian Postbox, staff at treasure house have removed rust and flaky

paint. The toll gate will not be painted and protective coatings will be applied if necessary.



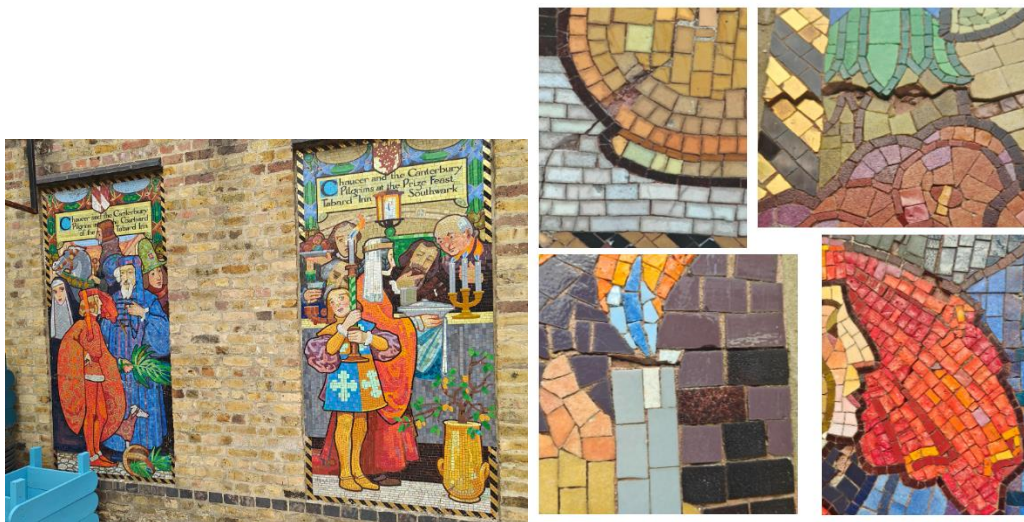
27. **Plaque commemorating the opening of the building:** Original stone plaque from the 1891 opening of Camberwell No 1 public library, which this building was before it was named and used as the Livesey Museum and Treasure Houses facility. It is attached to a wall in the rear garden, part of the former rear elevation of the old library structure. The plaque is in satisfactory condition.



28. **Foundation stone of Grange Road public baths and wash house from 1926 and drinking fountain:** This possibly marble and granite piece is installed to the front of the building under the main window and facing the street. It was installed in the 1970s after being excavated from building works. It is in reasonable condition. The pipework and pump action of the fountain doesn't appear to be working. The stone has been inspected by officers and is still in a satisfactory condition overall.



29. **Mosaics of Old Kent Road Library:** These two mosaic panels show two depictions of the stories from Chaucer's Canterbury Tales. One shows the pilgrims in the courtyard at the Tabard Inn around present day Borough High Street, a real inn, from where the fictional pilgrims embarked on their journey. The second shows a feast being given for the pilgrim who told the best tale on their journey from Old Kent Road to Canterbury. The pair were originally on the walls of the Old Kent Road library at Bricklayer's Arms, demolished in 1967 to make way for the Bricklayer's Arms flyover. They are still attached to the rear extension of the Livesey building and in reasonable condition: there are one or two losses and loose pieces but this has not increased. Any repairs should be subject to a proper assessment.



30. **Cattle trough from Old Kent Road:** This is sited in the rear garden on the left-hand side when facing the George Livesey statue. It is probably late Victorian. It is in reasonable condition and is full of planting material which is not an issue. The trough is very robust, it has been inspected by officers and is still in a satisfactory condition overall.



31. **Cannon bollard:** The bollard is an original ships' cannon used as street furniture (e.g. a street bollard) when no longer usable as cannon. It is in good condition but is the only one to remain almost completely covered by planting, which, although this is in itself neatly tended, is an issue so officers have asked staff to cut this back or remove the plating around the cannon bollard altogether.



32. **Grange Road public baths and wash house stone plaque:** Due to the clearance of planting and a chicken coup, this additional object has been revealed. This was previously inaccessible. The plaque has been mounted flat and is collecting rainwater on its surface.



Policy framework implications

33. None

Community, equalities (including socio-economic) and health impacts

Community impact statement

34. The update set out in this report has no adverse impact on the community, nor do they disadvantage any equalities group or protected characteristic. The service provided by Treasure House is aimed at young people with special educational needs.

Equalities (including socio-economic) impact statement

35. Treasure House is a specialist education provision, working with young people with anxiety and other emotional barriers, autism, dyslexia and school phobia. The key aims of Treasure House are to support each student to feel comfortable and safe so that they can re-engage in the learning process, providing access to high quality tuition across a broad curriculum.

Health impact statement

36. As set out in paragraph 16, the service provided by Treasure House is of benefit for young people with anxiety and other emotional barriers, autism, dyslexia and school phobia.

Climate change implications

37. The update provided in this report has no climate change implications.

Resource Implications

38. None

Finance Implications

39. The lease to Treasure House (London) CIC completed on 18 December 2019.

40. From that point the majority of obligations in respect of the building transfer to the tenant for the duration of the lease (initially 10 years, although subject to break options on either side and the tenant's is not operable yet).

41. The council retains responsibility for artefacts in the garden and the statue situated there.

42. The council insures the building on a reinstatement basis but the lease requires the tenant to reimburse premiums, so this head of expenditure should be neutral on the council.

43. Officers have suggested to the tenant that they obtain a fee quote for the external condition survey to help determine the scope, cost and liability of any repairs required.
44. In view of the above there are no cost to the council arising from the lease for the period 2024/25.

Consultation

45. This is an update report that does not require consultation.

SUPPLEMENTARY ADVICE FROM OTHER OFFICERS

Assistant Chief Executive (Governance and Assurance) (CM 17.12.25)

46. This report asks the Committee to note the content of the Livesey Trust Annual Report 2024-25. The object of the Livesey Trust is set out in the Charity Commissioner's scheme (appended to this report at Appendix 2) which is for the advancement of education of persons resident in the area of benefit in such ways as the trustee thinks fit.
47. In summary, the Livesey property must be used for the provision of a library or library services or if not required for these purposes for any other use in furtherance of the object as the council as trustee may from time to time decide.
48. The scheme requires the council as trustee to ensure that the property is being utilised effectively and in accordance with the object of the charity for the benefit of the public.
49. The scheme includes the requirement for the council as trustee at all times to take necessary steps to ensure that the charity is independent from the council and exists to pursue its own purposes and not to carry out the policies or directions of the council or any other body.
50. This means that the council (acting through the Livesey Trust Committee) is required to give consideration to the operation of the Trust solely in its role as corporate trustee and in accordance with the object and interests of the Trust.
51. As corporate trustee the council, in accordance with common law, has an overriding duty to promote the charitable purposes of the charity. It must carry out its responsibilities with reasonable diligence and conduct its affairs in the same manner as an ordinary prudent business person would conduct his/her own affairs. A trustee must also take all reasonable and proper measures to maintain and secure any Trust property.

Strategic Director of Resources (ESL25/118)

52. This report is requesting Cabinet (Livesey Trust) Committee to note The

Livesey Trust, Annual Report.

53. The strategic Director of Resources notes there are no financial implications arising from this report, as mentioned in the financial implications.
54. Staffing and any other costs connected with this report to be contained within existing Culture Division's revenue budgets.

BACKGROUND DOCUMENTS

Background Papers	Held At	Contact
None		

APPENDICES

No.	Title
Appendix 1	The Charity Commission for England and Wales Scheme, The Livesey Trust
Appendix 2	Treasure House Annual Report

AUDIT TRAIL

Lead Officer	Toni Ainge, Director of Leisure		
Report Author	Eva Gomez, Head of Culture		
Version	Final		
Dated	17 December 2025		
Key Decision	No		
CONSULTATION WITH OTHER OFFICERS / DIRECTORATES / CABINET MEMBER			
Officer Title		Comments Sought	Comments Included
Assistant Chief Executive (Governance and Assurance)		Yes	Yes
Strategic Director, Resources		Yes	Yes
Date final report sent to Constitutional Team			18 December 2025